

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jayvee Rhoda	Team: Squad #08	CCRB Case #: 201504134	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 05/19/2015 6:02 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 11/19/2016	Precinct: 88		
Date/Time CV Reported Fri, 05/22/2015 2:34 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Fri, 05/22/2015 2:34 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. DT3 James Baez	07011	923599	NARCBBN
3. SGT Alexandru Anghel	00240	934403	NARCBBN

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. CPT Kenneth Harsch	00000	906423	NARCBBN
2. POM Piotr Zebrowski	29564	946410	NARCBBN
3. DT3 Richard Alerte	05893	929599	NARCBBN
4. DT3 Jonas Bazile	910	929695	NARCBBN
5. POM Carlos Morales	06220	948253	NARCBBN
6. DT3 John Slavinsky	02046	939476	NARCBBN
7. DT3 Lorne Kanover	01824	936842	NARCBBN
8. DT3 Raymond Gordon	04592	916966	NARCBBN
9. POF Natia Kalandadze	20858	945217	NARCBBN

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Abuse: Officers entered and searched § 87(2)(b) in Brooklyn.	A . Exonerated
B . SGT Alexandru Anghel	Abuse: Sgt. Alexandru Anghel refused to show a search warrant to § 87(2)(b)	B . Unsubstantiated
C . DT3 James Baez	Abuse: Det. James Baez refused to show a search warrant to § 87(2)(b)	C . Unsubstantiated

Case Summary

On May 19, 2015, at approximately 6:02 a.m., Sgt. Alexandru Anghel, Det. James Baez, PO Piotr Zebrowski, and several other officers from Narcotics Bureau Brooklyn North forcibly entered § 87(2)(b)'s apartment, located at § 87(2)(b) in Brooklyn **(Allegation A)**. The officers were executing a valid search warrant and § 87(2)(b) was alone when the officers entered her apartment. § 87(2)(b) was handcuffed in her bedroom and brought out into the living room. § 87(2)(b) asked all of the officers present to show her the search warrant. Sgt. Anghel allegedly replied, "It's in the car." **(Allegation B)** § 87(2)(b) asked again for officers to show her the search warrant and Sgt. Anghel allegedly replied, "Your lawyer will have it." **(Allegation B)** None of the officers, including Det. Baez, who was the arresting officer, ever showed § 87(2)(b) the search warrant **(Allegation C)**. Det. Baez searched the apartment and discovered methadone, marijuana, and crack cocaine. § 87(2)(b) was removed to the 88th Precinct stationhouse and charged with c § 87(2)(b)

Mediation, Civil, and Criminal Histories

This case was not eligible for mediation due to § 87(2)(b)'s arrest. On July 22, 2015, a FOIL request was sent to the New York City Comptroller's Office and the status of a Notice of Claim for § 87(2)(b) is pending. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer Histories

- § 87(2)(b) has filed one other CCRB complaint. § 87(2)(b)
- Sgt. Anghel has been a member of the service for 11 years and there are no substantiated CCRB allegations against him (See Board Review 3).
- Det. Baez has been a member of the service for 16 years and there are four substantiated CCRB allegations against him. In case number 200208495, the Board recommended charges for physical force, question and/or stop, frisk and/or search, and discourtesy allegations and the NYPD issued a command discipline (See Board Review 10).

Findings and Recommendations

Explanation of Subject Officer Identification

Sgt. Anghel acknowledged interacting with § 87(2)(b) § 87(2)(g)

Allegations Not Pleaded

§ 87(2)(g)

Recommendations

Allegation A- Abuse of Authority: Officers entered and searched § 87(2)(b)

§ 87(2)(b), in Brooklyn.

It is not in dispute that narcotics officers entered and searched § 87(2)(b) in Brooklyn. § 87(2)(b)'s arrest reported noted that the officers had a valid search warrant (§ 87(2)(b)) for her apartment (See Board Review 4). The warrant was issued on § 87(2)(b), and valid for ten days thereafter (See Board Review 5). § 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **Exonerated**.

Allegation B- Abuse of Authority: Sgt. Alexandru Anghel refused to show a search warrant to § 87(2)(b)

Allegation C- Abuse of Authority: Det. James Baez refused to show a search warrant to

§ 87(2)(b)

§ 87(2)(b) stated that she was sleeping in her bedroom when officers breached the door and entered her apartment. § 87(2)(b) who was alone in the apartment, was handcuffed and brought outside into the living room. Sgt. Anghel and PO Zebrowski stood beside § 87(2)(b) while she was seated in the living room. Det. Baez explained that the officers were searching for drugs and he proceeded to search the entire apartment. § 87(2)(b) stated that she was only in possession of § 87(2)(b) that was prescribed to her and there were no other drugs in her apartment. § 87(2)(b) asked all of the officers present approximately three to four times to show her the search warrant. § 87(2)(b) stated that Sgt. Anghel sarcastically replied, "It's in the car." When § 87(2)(b) asked again to see the search warrant, Sgt. Anghel replied, "Your lawyer will have it." No other officers responded to § 87(2)(b)'s requests to see the warrant. None of the officers, including Sgt. Anghel, ever showed the search warrant to § 87(2)(b). Det. Baez discovered marijuana in § 87(2)(b)'s kitchen cabinets, but he never showed it to § 87(2)(b) who denied having any marijuana in the apartment. § 87(2)(b) was transported to the 88th Precinct stationhouse and charged with § 87(2)(b) (See Board Review 6).

Sgt. Anghel, who was the team leader, stated that shortly after the apartment was breached and § 87(2)(b) was handcuffed, all of the officers left the scene except for him, Det. Baez, and Capt. Kenneth Harsch. Only Det. Baez searched the apartment while Sgt. Anghel and Capt. Harsch supervised the search. § 87(2)(b) was handcuffed and kept in the living room; she was upset and agitated. Sgt. Anghel stated that the arresting officer, team leader, and captain are responsible for carrying the search warrant and he confirmed that he, Sgt. Anghel, and Capt. Harsch were all in possession of the warrant during the incident. Sgt. Anghel stated that § 87(2)(b) asked him to show her the search warrant and Sgt. Anghel proceeded to show the warrant to her. Sgt. Anghel thought that § 87(2)(b) was illiterate because she asked, "What is this?" when Sgt. Anghel showed her the warrant. Sgt. Anghel explained to § 87(2)(b) that the document he was showing her was a Kings County search warrant signed by a judge. Sgt. Anghel denied saying, "It's in the car," or, "Your lawyer will have it" when § 87(2)(b) asked to see the warrant. § 87(2)(b) did not have to ask for the warrant several times before Sgt. Anghel showed it to her; Sgt. Anghel presented the warrant to § 87(2)(b) the first time she asked to see it (See Board Review 7).

Det. Baez, who was the arresting officer, stated that § 87(2)(b) was brought to the kitchen while he searched the entire apartment. Nearly all of the officers except for Det. Baez, Sgt. Anghel, and

§ 87(2)(g)

Investigator:	_____	_____	_____
	Signature	Print	Date
Supervisor:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date